Fjordview Kommune

Fjordview Community Centre

Tender Reference FCC-2026-T01

Document 02

Particular Conditions of Contract

Revision	Date	Status	Prepared by	Checked by
P01	2026-10-03	Issued for Tender	Fjordview Kommune Project Team	Nordvik Rådgivning AS

This document forms part of the tender documents for the above project. It is issued for tendering purposes only and must not be used for construction.

Note: this is a synthetic example tender pack prepared for a technical interview exercise. The project, parties and figures are fictional.

Part A - Contract Data

These Particular Conditions amend and supplement NS 8407:2011 General conditions of contract for design and build contracts (the General Conditions). Clause numbers refer to the General Conditions unless stated otherwise. Where a Particular Condition conflicts with a General Condition, the Particular Condition prevails. Where a Particular Condition conflicts with any other tender document, the Particular Condition prevails as set out in the order of precedence in the Instructions to Tenderers.

Item	Data
Employer (Byggherre)	Fjordview Kommune, org. no. 912 345 678, Rådhusplassen 1, 5700 Fjordview
Employer's Representative	Nordvik Rådgivning AS
Contractor (Totalentreprenør)	To be inserted on award
The Works	Design completion and construction of the Fjordview Community Centre as described in the Employer's Requirements, Specifications and Drawings
Site	Havnegata 12, 5700 Fjordview, gnr/bnr 42/118
Contract Sum	NOK [to be inserted] excluding VAT, fixed and not subject to indexation
Language of the Contract	Norwegian; English translation for convenience only
Governing law	Norwegian law; disputes to Bergen tingrett

Part B - Amendments to the General Conditions

Clause 1 - Definitions

Add the following definitions:

"Date of Commencement" means the date stated in the Employer's notice to proceed, anticipated to be 1 March 2027.

"Date for Completion" means the date by which the Contractor shall achieve Completion of the Works, as stated in Clause 8.2, as extended under Clause 8.5.

"Completion" (overtakelse) means the state of the Works when they are complete in accordance with the Contract save for minor defects which do not prevent the Employer from taking the Works into use, all statutory approvals for occupation have been obtained and the handover documentation in Clause 11.4 has been delivered.

"Supplier" means any person supplying goods, plant or equipment to the Contractor, including the commercial kitchen equipment supplier. The Contractor is fully responsible for its Suppliers.

Clause 2 - Contract documents

Delete the order of precedence in the General Conditions and replace with the order of precedence stated in Section 5 of the Instructions to Tenderers, with the exception that these Particular Conditions rank above the Employer's Requirements.

The Contractor confirms that it has examined the tender documents and has raised all discrepancies it could reasonably have identified prior to the Contract date. Discrepancies which could reasonably have been identified shall be resolved at the Contractor's cost in accordance with the higher or more onerous requirement.

Clause 3 - Contractor's general obligations

The Contractor shall complete the design of the Works and construct the Works so that they are fit for the purposes stated in the Employer's Requirements. The Contractor warrants that the completed Works will comply with Byggteknisk forskrift (TEK17) and all other applicable laws at the date of Completion.

The Contractor shall appoint the Employer's architect and structural engineer by novation on the terms of the novation agreement at Appendix B. The Contractor remains responsible for the novated design including design prepared before novation.

Clause 4 - Design

The Contractor is responsible for the design of the Works in accordance with the design responsibility matrix in the Employer's Requirements. The Contractor shall submit design information for review in accordance with the review procedure in the Employer's Requirements and shall allow 10 working days for each review. Review does not relieve the Contractor of responsibility.

The Contractor shall coordinate the architectural, structural and MEP design so that the Works can be constructed without conflict. Clashes identified after the Contract date shall be resolved at the Contractor's cost. The Contractor shall maintain a federated BIM model at MMI 500 at Completion.

Clause 5 - Site conditions

The Contractor is deemed to have inspected the Site and satisfied itself as to the ground conditions, existing services and access, subject only to Clause 5.2. The ground investigation report issued with the tender is provided for information and the Employer gives no warranty as to its accuracy.

5.2 Where physical conditions are encountered which an experienced contractor could not reasonably have foreseen from the information provided and a site inspection, the Contractor shall give notice within 7 days and the matter shall be dealt with as a variation. Contaminated ground in excess of the quantities stated in the Employer's Requirements shall be dealt with under provisional sum PS4.

Clause 6 - Statutory obligations

The Contractor shall obtain the igangsettingstillatelse and all other consents required for the Works other than the rammetillatelse already obtained by the Employer, and shall pay all associated fees except those covered by provisional sum PS5. The Contractor shall act as ansvarlig søker, ansvarlig prosjekterende and ansvarlig utførende for all relevant areas of responsibility.

The Contractor shall comply with and discharge the planning conditions listed in the Employer's Requirements and shall provide the Employer with evidence of discharge before Completion.

Clause 8 - Time

8.1 Commencement

The Contractor shall commence the Works on the Date of Commencement and shall proceed with due expedition and without delay.

8.2 Date for Completion

The Contractor shall achieve Completion of the whole of the Works within 12 months after the Date of Commencement. Based on the anticipated Date of Commencement of 1 March 2027, the Date for Completion is 1 March 2028.

Sectional completion does not apply. The Employer may take partial possession of the car park and external works prior to Completion without adjustment to the Contract Sum or the Date for Completion.

8.3 Programme

Within 14 days of the Date of Commencement the Contractor shall submit a detailed programme in critical path format consistent with the Date for Completion, showing design, procurement, construction, commissioning and handover. The programme shall be updated monthly. The tender programme submitted with the Contractor's tender is incorporated into the Contract for information only; where it conflicts with Clause 8.2, Clause 8.2 prevails.

8.4 Progress

The Contractor shall notify the Employer's Representative within 7 days of becoming aware of any event likely to delay Completion, stating the cause, anticipated effect and mitigation proposed.

8.5 Extension of time

The Contractor is entitled to an extension of the Date for Completion only for: (a) variations instructed by the Employer; (b) breach of contract by the Employer; (c) exceptionally adverse weather exceeding the 10-year average for the month as recorded at Bergen Florida; (d) force majeure as defined in the General Conditions. No extension will be granted for delays caused by Suppliers, subcontractors or the Contractor's design consultants.

Claims for extension of time shall be notified within 14 days of the event and substantiated within 28 days, failing which the claim is barred.

8.6 Acceleration

The Employer may instruct acceleration. The cost of acceleration shall be agreed before the instruction takes effect; failing agreement the Employer's Representative shall determine a fair cost.

8.7 Liquidated damages for delay

If the Contractor fails to achieve Completion by the Date for Completion the Contractor shall pay the Employer liquidated damages of NOK 45,000 per week or part thereof for the period from the Date for Completion to the date of actual Completion. Liquidated damages are capped at 10% of the Contract Sum. The parties agree that this sum is a genuine pre-estimate of the Employer's loss.

The Employer may deduct liquidated damages from any payment due to the Contractor or recover them as a debt.

Clause 9 - Quality

All materials and workmanship shall be of the kind and standard described in the Contract or, where not described, of a standard appropriate to a public building with a design life of 60 years. Work shall be executed by suitably trained and experienced operatives under competent supervision. The Contractor shall maintain an inspection and test plan for the works in this section and shall give the Employer's Representative not less than two working days' notice of hold points.

The Contractor shall operate a quality management system certified to ISO 9001 and shall make its records available to the Employer's Representative on request.

Clause 10 - Testing and commissioning

The Contractor shall test and commission all building services in accordance with the MEP Specification and shall demonstrate to the Employer's Representative that performance criteria in the Employer's Requirements are met. A seasonal commissioning period of 12 months after Completion applies to the heating and ventilation systems, during which the Contractor shall attend site at least quarterly to adjust the systems.

Completion shall not be certified until the fire alarm, emergency lighting, sprinkler (where installed), smoke control and lift installations have been tested and certified by the relevant authority.

Clause 11 - Completion and defects

11.1 Defects liability period

The defects liability period (reklamasjonsperiode for utbedring) is 24 months from the date of Completion. During this period the Contractor shall remedy, at its own cost, any defect notified by the Employer within 14 days of notification, or such longer period as the Employer's Representative agrees. This period is without prejudice to the Contractor's statutory liability for defects under the General Conditions, which is 5 years from Completion.

11.2 Completion inspection

The Contractor shall give 21 days' notice of the date on which it expects to achieve Completion. The Employer's Representative shall inspect within 7 days of the notified date and issue either a Completion Certificate or a list of outstanding items. Completion shall not be certified while any life-safety system is incomplete or untested.

11.3 Equipment warranties

All plant and equipment shall carry a manufacturer's warranty of not less than 24 months from Completion. Commercial kitchen equipment shall carry a warranty of not less than 24 months with parts and labour included. Warranties shall be assigned to the Employer at Completion.

11.4 Handover documentation

At completion the Contractor shall provide operation and maintenance manuals, as-built drawings in native and PDF format, commissioning records, warranties and training for the Employer's facilities staff. Handover documentation shall be delivered not less than 10 working days before the Completion inspection.

Clause 14 - Payment

14.1 Interim payments

The Contractor shall submit a monthly application for payment on the last working day of each month, supported by a measure of work completed against the Pricing Schedule and the cash-flow forecast. The Employer's Representative shall certify within 14 days and the Employer shall pay within 30 days of the certificate.

14.2 Materials off site

Payment for materials off site will be made only for items listed in Appendix C, vested in the Employer, insured and stored to the Employer's Representative's satisfaction.

14.3 Retention

The Employer shall retain 5% of the value of each interim payment. One half of the retention shall be released with the first payment after Completion and the remaining half at the end of the defects liability period, less the value of any defects not remedied. The Contractor may replace retention with an on-demand bank guarantee of equivalent value from a bank acceptable to the Employer.

14.4 Final account

The Contractor shall submit the final account within 2 months of Completion. The Employer's Representative shall issue the final certificate within 2 months of receipt of a properly substantiated final account.

14.5 Performance security

Within 14 days of the Contract date the Contractor shall provide an on-demand bank guarantee for 10% of the Contract Sum, reducing to 3% at Completion and expiring at the end of the defects liability period.

Clause 18 - Insurance

18.1 Contractor's all risks

The Contractor shall insure the Works, materials and temporary works for their full reinstatement value plus 15% for professional fees and debris removal, in the joint names of the Employer and the Contractor, from the Date of Commencement to Completion.

18.2 Professional indemnity

The Contractor shall maintain professional indemnity insurance of not less than NOK 30 million for each and every claim for 10 years after Completion, and shall procure that each design consultant maintains cover of not less than NOK 15 million.

18.3 Public liability

The Contractor shall maintain public liability insurance covering death, injury and damage to third party property for not less than NOK 50 million per occurrence, unlimited in the aggregate, until the end of the defects liability period.

18.4 Evidence

Evidence of insurance shall be provided before the Date of Commencement and on each renewal. The Employer may take out any insurance the Contractor fails to maintain and deduct the premium from payments due.

Clause 19 - Health, safety and environment

The Contractor is the principal contractor (hovedbedrift) and shall prepare and maintain the HSE plan for the construction phase. The Contractor shall comply with the Employer's policies at Appendix F and with the constraints on working hours, deliveries and noise stated in the Instructions to Tenderers.

The Contractor shall achieve a minimum of 85% diversion of construction waste from landfill and shall report monthly on waste, energy use on site and embodied carbon of materials procured against the targets in the Employer's Requirements.

Clause 20 - Assignment and subcontracting

The Contractor shall not assign the Contract. The Contractor may subcontract parts of the Works subject to the Employer's Representative's prior approval of each subcontractor, which shall not be unreasonably withheld. Not more than two tiers of subcontracting are permitted. The Contractor shall procure collateral warranties in the form at Appendix E from the design consultants and from the subcontractors for steel frame, roofing, MEP and lifts.

The Contractor shall ensure that all workers on Site hold a valid HMS card and that pay and conditions comply with the applicable general application regulations (allmenngjøringsforskrifter).

Clause 25 - Site access and working hours

The Employer shall give the Contractor possession of the whole Site on the Date of Commencement. Working hours are 07:00 to 19:00 Monday to Friday and 08:00 to 16:00 on Saturdays. No work shall take place on Sundays or public holidays without the Employer's Representative's prior written consent. Deliveries are further restricted during school drop-off and pick-up as stated in the Instructions to Tenderers.

Clause 31 - Variations

Variations shall be instructed in writing by the Employer's Representative. The Contractor shall submit a priced proposal within 14 days including any effect on the Date for Completion. Variations shall be valued using the rates in the Pricing Schedule where applicable, otherwise at fair rates with an allowance of 8% for overheads and profit.

The Contractor shall not be entitled to additional payment or time for work which is necessary to resolve a discrepancy between tender documents which the Contractor could reasonably have identified before the Contract date (see Clause 2).

Clause 36 - Termination

In addition to the grounds in the General Conditions, the Employer may terminate if liquidated damages reach the cap in Clause 8.7, or if the Contractor fails to maintain the insurances in Clause 18 for more than 14 days after notice.

Clause 40 - Disputes

Disputes shall first be referred to the project managers of each party, then to senior executives, and if unresolved within 28 days to mediation. Either party may thereafter commence proceedings before Bergen tingrett. Work shall continue during any dispute.

Appendices

Appendix	Content
A	Form of Agreement
B	Novation agreement (architect and structural engineer)
C	Schedule of materials off site eligible for payment
D	Form of performance guarantee
E	Form of collateral warranty (design consultants and key subcontractors)
F	Employer's policies: health and safety, environmental, equality

Appendices A to F are standard forms and are not reproduced in this example pack.